# FAMILY SCENARIO: MATRIMONIAL HARASSMENT, CRUELTY & DOWRY DEMANDS

FACTUAL MATRIX & DISPUTE: A wife is harassed, mentally and physically tortured by her husband and in-laws with persistent demands for money, vehicles, or ancestral gold. In-laws threaten to expel her from the matrimonial home.

LEGAL STANDING & WHO IS IN THE RIGHT: The wife is legally in the right. The husband and in-laws are guilty of cognizable criminal offences and civil domestic abuse under Indian Law.

STATUTORY SECTIONS SUPPORTING THE WIFE:

1. Section 498A IPC / Section 85 & 86 BNS: Cruelty by husband or relatives of husband. Punishment up to 3 years imprisonment and fine. Non-bailable and cognizable.
2. Dowry Prohibition Act, 1961 (Sections 3 & 4): Penalty for giving, taking, or demanding dowry. Minimum 5 years imprisonment.
3. Protection of Women from Domestic Violence Act, 2005 (PWDVA):
- Section 12: Application to Magistrate for comprehensive protection and monetary relief.
- Section 17: Right to reside in a shared household; husband cannot evict her without due process of law.
- Section 18: Protection Orders restraining husband/in-laws from contacting or entering her residence/workplace.
- Section 19: Residence Orders directing in-laws to provide alternative accommodation or vacate shared home.
- Section 20 & 22: Monetary relief for medical expenses, loss of earnings, and compensation for mental agony.
4. Section 125 CrPC / Section 144 BNSS: Mandatory monthly maintenance for wife and minor children unable to maintain themselves.

LANDMARK PRECEDENTS:

- Rajnesh v. Neha (2020) Supreme Court: Mandatory disclosure of assets and income affidavits by husband for maintenance.
- Arnesh Kumar v. State of Bihar (2014) Supreme Court: Safeguards under Section 35(3) BNSS / 41A CrPC against routine arrest.
- Prabha Tyagi v. Kamlesh Devi (2022) Supreme Court: Woman has right to shared household even if residing separately at time of complaint.

# FAMILY SCENARIO: ANCESTRAL PROPERTY PARTITION & DAUGHTERS EQUAL RIGHTS

FACTUAL MATRIX & DISPUTE: A Hindu father passes away intestate (without leaving a will). Sons and brothers take control of all agricultural land, houses, and bank accounts, refusing to provide any share to married or unmarried daughters, claiming daughters have no coparcenary rights.

LEGAL STANDING & WHO IS IN THE RIGHT: The daughters are entirely in the right. The brothers' exclusion of daughters is illegal and void ab initio.

STATUTORY SECTIONS SUPPORTING THE DAUGHTERS:

1. Section 6 Hindu Succession Act, 1956 (amended by Act 39 of 2005): A daughter of a coparcener shall by birth become a coparcener in her own right in the same manner as the son, with identical coparcenary rights and liabilities.
2. Section 8 Hindu Succession Act, 1956: General rules of succession in the case of males dying intestate. Class I heirs (sons, daughters, widow, mother) take equally.
3. Order XXXIX Rules 1 & 2 CPC / Section 38 Specific Relief Act, 1963: Application for temporary injunction restraining brothers from selling, mortgaging, or creating third-party interests in ancestral property pending partition.
4. Section 441 & 447 IPC (Criminal Trespass) & Section 406 IPC (Criminal Breach of Trust): Actionable if brothers illegally usurp movable stridhan or forged transfer papers.

LANDMARK PRECEDENT:

- Vineeta Sharma v. Rakesh Sharma (2020) 9 SCC 1 (3-Judge Constitutional Bench of Supreme Court): Held that daughters have equal coparcenary rights by birth under Section 6 HSA from 1956 onwards, regardless of whether the father was alive on September 9, 2005. Coparcenary right is conferred by birth and cannot be defeated by prior oral family partitions unless registered before 20th December 2004.

# FAMILY SCENARIO: MUTUAL CONSENT DIVORCE, ALIMONY & CHILD CUSTODY

FACTUAL MATRIX & DISPUTE: A husband and wife have lived separately for more than one year due to temperamental incompatibility. Disputes arise over permanent alimony, division of joint assets, and child custody.

LEGAL STANDING & PROCEDURAL RESOLUTION:

1. Section 13B Hindu Marriage Act, 1955: Divorce by mutual consent. First motion followed by second motion after 6-month statutory period.

- Waiver of 6-Month Cooling Period: Under Supreme Court landmark Amardeep Singh v. Harveen Kaur (2017), the 6-month period under Section 13B(2) is directory, not mandatory. Courts can waive cooling period if mediation fails and settlement is complete.

2. Section 25 Hindu Marriage Act, 1955: Permanent alimony and maintenance. The court evaluates gross earnings, lifestyle, assets, and liabilities of both spouses.

3. Child Custody & Guardianship:

- Sections 7, 17 Guardians and Wards Act, 1890 & Section 6 Hindu Minority and Guardianship Act, 1956.
- Welfare of the Child Principle (Gaurav Nagpal v. Sumedha Nagpal, Supreme Court): The paramount consideration in custody is not the legal rights of parents, but the best physical, moral, and psychological welfare of the child.
- Presumption: Natural custody of a child under 5 years belongs ordinarily to the mother.

# FAMILY SCENARIO: SENIOR CITIZENS NEGLECT & ILLEGAL PROPERTY TRANSFER

FACTUAL MATRIX & DISPUTE: Elderly parents transfer ancestral or self-acquired home to their son on the condition of care and food. After title transfer, the son and daughter-in-law mistreat, starve, and attempt to evict the elderly parents.

LEGAL STANDING & WHO IS IN THE RIGHT: The elderly parents are entirely in the right. The law renders such conditional transfers void.

STATUTORY SECTIONS SUPPORTING THE PARENTS:

1. Section 23 Maintenance and Welfare of Parents and Senior Citizens Act, 2007: Transfer of property to be void in certain circumstances. Where a senior citizen has transferred property by gift or otherwise, subject to the condition that the transferee shall provide basic amenities, and the transferee fails, the transfer of property is deemed fraudulent and declared void by the Maintenance Tribunal.
2. Section 4 & 5 Senior Citizens Act, 2007: Monthly maintenance up to statutory limits, enforceable through summary proceedings within 90 days.
3. Section 125(1)(d) CrPC / Section 144 BNSS: Mandatory maintenance orders against adult children having sufficient means.
4. Landmark Precedent: S. Vanitha v. Deputy Commissioner (2020) Supreme Court: Harmonized Senior Citizens Act with Domestic Violence Act, upholding protection of parents from harassment in their self-acquired homes.